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Attorneys for Plaintiffs

The Honorable Thomas O Rice

IN THE UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF WASHINGTON
AT SPOKANE

JANE ELIZABETH ROBERTS, *et al,*

Plaintiffs,

v.

SHRINERS HOSPITALS FOR CHILDREN, SHRINERS HOSPITALS FOR CHILDREN-SPOKANE, BEVERLY BOKOVITZ, FRANCES FARLEY, JERRY GANTT, JOHN McCABE, PHILLIP GRADY, PETER BREWER, AND GOV. JAY INSLEE

Defendants.

No. 2:23-CV-295-TOR

PLAINTIFFS' SUR-REPLY IN OPPOSITION TO SHRINERS CHILDREN'S MOTION TO DISMISS

2/5/2024

ORAL ARGUMENT REQUESTED

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Johnson v. Brown, 567 F.Supp.3d 1230 (D. Or. 2021)

Statutes

21 C.F.R. § 201
21 U.S.C. § 331(a)

Exhibits

Exhibit A, CDC.gov, Covid-19-Related Codes

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Defendants continue to dispute the reality that their COVID-19 vaccine mandate could not legally rely on EUA/PREP Act drugs for compliance. Moreover, Defendants assert an outrageous false claim that "Plaintiffs could have received an FDA-approved COVID vaccine to comply with Shriners Children's policy" (Doc 37, p. 8) to escape liability for their unlawful acts despite providing the Court with no evidence for when, where, how, and from whom COMIRNATY® was "available" to Plaintiffs. They only assert COMIRNATY® was "available" based on it being "licensed" for use in individuals 16 and older.

First, Defendants are incorrect that "Plaintiffs could have received an FDA-approved COVID vaccine," as Pfizer informed the CDC that they never manufactured their licensed formulation (COMIRNATY®) nor planned to do so. (See Exhibit A, CDC.gov, Covid-19-Related Codes) Second, Defendants' allegation effectively accuses the HHS Secretary of violating federal law for more than two years (August 23, 2021 through present) because the Secretary continued issuing EUAs for the Pfizer-BioNTech COVID-19 Vaccine for emergency use, an act that is prohibited if a licensed drug (COMIRNATY®) exists in the marketplace meeting that emergency use.

COMIRNATY® is Not "Available"

An investigational new drug (IND) is assigned an IND identification number (e.g., the FDA assigned IND Number 19736 to the Pfizer-BioNTech COVID-19 Vaccine

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because the FDA intended for the drug to be administered under the laws governing that classification, and Defendants do not prove otherwise.). An FDA-licensed drug made available for general commercial marketing is assigned a National Drug Code (NDC) that must be printed on the drug vials, containers, and promotional materials. (21 C.F.R. § 201)

Pfizer received a license for its vaccine technology and assigned it the marketing name "COMIRNATY" under NDC, 0069-1000-XX. The CDC publishes a list of COVID-19 Vaccine-Related Codes. Manufacturers submit updates on the status of their FDA-approved NDCs. One type of update is when the NDC becomes "available" for general commercial marketing. According to Exhibit A, p. 4, which is dated September 28, 2022, COMIRNATY® is listed in the section for NDCs "that will not be manufactured or made available in the near term even if authorized."[1]

Pfizer confirmed CDC's report and is quoted on p. 4 of Exhibit A (Second Row, Last Column) by the CDC as providing the following statement:

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[1] For the same reasons set forth by Shriners Defendants in their Motion to Dismiss, Footnote 2, Plaintiffs ask this court to take judicial notice of the facts contained in Exhibit A, which is a "record" or "report" from the CDC, and administrative governmental body.

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> "Pfizer received initial FDA BLA license on 8/23/2021 for its COVID-19 vaccine for use in individuals 16 and older (COMIRNATY). At that time, the FDA published a BLA package insert that included the approved new COVID-19 vaccine tradename COMIRNATY and listed 2 new NDCs (0069-1000-03, 0069-1000-02) and images of labels with the new tradename. **These NDCs will not be manufactured**. Only NDCs for the subsequently BLA approved tris-sucrose formulation will be produced." (Emphasis added)

Pfizer, the manufacturer of COMIRNATY®, informed the CDC that they **never manufactured its original licensed version and would not manufacture the licensed drug**. This notice is one reason the FDA continued issuing EUAs for Pfizer-BioNTech COVID-19 Vaccine – because Pfizer was not manufacturing COMIRNATY®. Therefore, Plaintiffs urge the Court to finally put to rest the Defendants' baseless and frivolous claim that "Plaintiffs could have received an FDA-approved COVID vaccine," especially considering that on a Motion to Dismiss, the Court should accept the Plaintiffs' allegations as true, not those of the Defendants.

Misbranding COMIRNATY®

Defendants claim, "To be clear, although Pfizer-BioNTech began branding and marketing its vaccine as Comirnaty following FDA approval, its vaccine authorized for emergency use (the Pfizer-BioNTech vaccine) was available to the public and identical in formulation to Comirnaty, as FDA and CDC guidance made clear." That statement is misleading and irrelevant.

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First, Defendants say Pfizer began branding and marketing "its vaccine" as COMIRNATY following FDA approval. This is misleading because Defendants do not clarify what they mean by "its vaccine." Pfizer produced two products – Pfizer-BioNTech COVID-19 Vaccine, an investigational EUA/PREP Act "vaccine," and COMIRNATY®, an FDA-licensed vaccine. Are Shriners Defendants accusing Pfizer of misbranding and mislabeling Pfizer-BioNTech COVID-19 Vaccine as COMIRNATY®? If so, Shriners Defendants are alleging that Pfizer committed a felony because it is a violation of federal drug misbranding laws (21 U.S.C. § 331(a)) for anyone to promote an unlicensed drug as if it is licensed with the intent (21 C.F.R. §201.128) to cause the potential recipient to believe the product is something other than its approved labeling. (Similarly, it can be said that Defendants' vaccine policy (Doc 1, ¶ 278) promoted the unlicensed EUA/PREP Act drugs as if they were licensed, a fallacy Defendants continue asserting throughout their Motion to Dismiss Plaintiffs' claims.)

Ultimately, however, the legal status of COMIRNATY® is irrelevant to the case at the bar because it was never manufactured. So, if Shriners Defendants are correct that Pfizer feloniously marketed and branded Pfizer-BioNTech COVID-19 Vaccine as COMIRNATY®, that still does not change the EUA/PREP Act status of Pfizer-BioNTech COVID-19 Vaccine, and it did not make COMIRNATY® "available." Instead, it created a misbranded and mislabeled EUA/PREP Act product

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because the laws applicable to COMIRNATY®'s labeling have no applicability to the label for the "Pfizer-BioNTech COVID-19 Vaccine" EUA/PREP Act drug.

Plaintiffs' claims are based upon the legal distinctions between Pfizer-BioNTech COVID-19 Vaccine and COMIRNATY® and how those legal distinctions impact the Plaintiffs' rights and the Defendants' duties, a legal distinction Defendants avoid discussing. The undisputed facts are that the federal government purchased all vials labeled as "Pfizer-BioNTech COVID-19 Vaccine," which were manufactured, labeled, distributed, and administered under investigational drug laws, subject to the EUA statute, the PREP Act, and the terms and conditions of the CDC COVID-19 Vaccination Program Provider Agreement. Defendants provide this Court with no statutory or jurisprudential support for the contention that Defendants and this Court have the authority to rewind history and remove the investigational drug laws that apply to vials labeled as investigational simply because Pfizer may in the future start manufacturing vials under its marketing license operating under a different set of laws. (Doc 1-4, p.1, third paragraph, last sentence)

Defendants are essentially arguing that they had the authority to apply the laws applicable to the "Pfizer-BioNTech COVID-19 Vaccine" label to Plaintiffs in the same manner as laws applicable to the "COMIRNATY®" label simply because COMIRNATY® received an FDA license and the two drugs share formulation.

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Such an argument violated federal law and flatly contradicts the HHS Secretary's EUAs for the two drugs.

EUA Obligations

The FDA's unambiguous intent is set forth in its August 23, 2021, EUA letter for the "Pfizer-BioNTech COVID-19 Vaccine" drug (Doc 1-2), in which the FDA informed Defendants that there are two "legally distinct" drugs under the EUA, stating, "COMIRNATY (COVID-19 Vaccine, mRNA) is the same formulation as **the** Pfizer- BioNTech COVID-19 Vaccine" (emphasis added) (Doc 1-2, p.2, last paragraph) and "the products are legally distinct" (Doc 1-2, FN 8). In that same letter, the FDA issued its "Criteria for Issuance of Authorization" (Doc 1-2, p.5) because, among other things,

> "There is no adequate, approved, and available[9] alternative to the emergency use of Pfizer-BioNTech COVID-19 Vaccine.
>
> [9] Although COMIRNATY (COVID-19 Vaccine, mRNA) is approved to prevent COVID-19 in individuals 16 years of age and older, there is not sufficient approved vaccine available for distribution to this population in its entirety at the time of reissuance of this EUA. Additionally, there are no products that are approved to prevent COVID-19 in individuals age 12 through 15, or that are approved to provide an additional dose to the immunocompromised population described in this EUA."

The true meaning of the statement that "there is not sufficient approved vaccine available for distribution" is that there is none because, as demonstrated above, **Pfizer did not manufacture any COMIRNATY®**.

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On p. 10 of that same letter (Doc 1-2, Letters P, R, X), the FDA required the following:

> P. "Emergency response stakeholders will ensure that vaccination providers within their jurisdictions are aware of this letter of authorization, and the terms herein and any subsequent amendment that might be made to the letter of authorization, instruct them about the means through which they are to obtain **and administer the vaccine under the EUA**, and ensure that the authorized labeling is made available to vaccination providers through appropriate means." (Emphasis added)[2]
>
> R. "Vaccination provider will administer the vaccine in accordance with the authorization."
>
> X. "All descriptive printed matter, advertising, and promotional material relating to the use of the Pfizer-BioNTech COVID-19 Vaccine clearly and conspicuously shall stat that: This product has not been approved or licensed by FDA, but has been authorized for emergency use by FDA…"

The Provider Agreement also states, "Organization must comply with all applicable requirements as set forth by the U.S. Food and Drug Administration, including but not limited to requirements **in any EUA** that covers COVID-19 Vaccine" (emphasis added) (Doc 1-1, Provider Agreement, p.3, Line 12(a)). Therefore, Defendants already agreed to comply with "any EUA" issued by the FDA. Therefore, the FDA's

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[2] The "emergency response stakeholder" is the Washington State executive branch and the "vaccination provider" is Shriners Defendants.

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assigned classification of COMIRNATY® has no bearing on the case at bar because Pfizer did not manufacture it, and Defendants were informed that they could not administer Pfizer-BioNTech COVID-19 Vaccine any differently after August 23, 2021, than they did before that date.

Defendants had a ministerial duty to inform Plaintiffs of their lawful authority to accept or refuse the product without consequence under the Provider Agreement and the EUA letter. They failed to comply with federal law by concealing this material fact from the Plaintiffs before they promoted the unlicensed drugs as if they were licensed and penalized the Plaintiffs for nothing more than exercising their federal right to refuse the federally funded EUA/PREP Act investigational new drugs.

Johnson v. Brown

Defendants state that "Plaintiffs do not discuss Johnson in their Opposition." That is because Plaintiffs already addressed the case in their Response to Notice of Supplemental Authority.

PREP Act Case Law

Shriners Defendants refer to two cases brought by undersigned counsel against Terminix Pest Control, but they fail to advise the court that both of those cases are on appeal with the Fifth Circuit. Similarly, in the Western District of

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Washington case of *Curtis v. PeaceHealth*, undersigned counsel has filed a Rule 59(E) Motion to Amend or Alter Order, which is currently pending.

RESPECTFULLY SUBMITTED,

Date: 1/22/24

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CERTIFICATE OF SERVICE

I hereby certify that on this 22nd day of January, 2024, I presented the foregoing pleading to the Clerk of Court for filing and uploading to the CM/ECF system, which will send notification of such filing to all counsel of record.

/s/ David J. Schexnaydre
DAVID J. SCHEXNAYDRE